

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI**

**1. Non- Execution Application
In**

Complaint No. CC006000000079223

Mr. Rajesh Kharatmol

..... Complainants

Versus

M/s. Nirmal Lifestyle (Kalyan) Pvt Ltd

..... Respondent

Project Registration No. **P51700006766.**

Along with

**2. Non- Execution Application
In**

Complaint No. CC006000000055524

Mr. Gul Rochlani

..... Complainant

Versus

M/s. Nirmal Lifestyle (Kalyan) Pvt Ltd

..... Respondent

Project Registration No. **P51700007641**

Along with

**3. Non- Execution Application
In**

Complaint No. CC006000000054574

Mrs. Radharani Srivastav

..... Complainant

Versus

M/s. Nirmal Lifestyle (Kalyan) Pvt Ltd

..... Respondent

Project Registration No. **P51700003541**

Along with

**4. Non- Execution Application
In**

Complaint No. CC006000000054644

Mr. Kamlesh R. Yadav

..... Complainant

Versus

M/s. Nirmal Lifestyle (Kalyan) Pvt Ltd

..... Respondent

Project Registration No. **P51700002924**

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Along with
5. Non- Execution Application
In
Complaint No. CC006000000000412

Mrs. Geeta Jadhav Complainant
Versus
M/s. Nirmal Lifestyle (Kalyan) Pvt Ltd Respondent
Project Registration No. **P51700005583**

Along with
6. Non- Execution Application
In
Complaint No. CC006000000002331

Mr. Kailas Sorte Complainant
Versus
M/s. Nirmal Lifestyle (Kalyan) Pvt Ltd Respondent
Project Registration No. **P51700006766**

Along with
7. Non- Execution Application
In
Complaint No. CC0060000000057748

Mr. Vishnu Tailor Complainant
Versus
M/s. Nirmal Lifestyle (Kalyan) Pvt Ltd Respondent
Project Registration No. **P51700005583**

Along with
8. Non- Execution Application
In
Complaint No. CC0060000000056241

Mrs. Madhuri Arvind Jalan Complainant
Versus
M/s. Nirmal Lifestyle (Kalyan) Pvt Ltd Respondent
Project Registration No. **P51700003543**

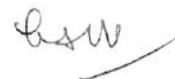
Coram: Hon'ble Dr. Vijay Satbir Singh, Member – 1/MahaRERA
Adv. Ritu Shrivastav appeared for the complainant at Sr No.8.

The complainants appeared in person at Sr. No. 1 to 7.
Adv. Tushar Kadam a/w Mrs. Vaishali Mohite appeared for the respondent.

ORDER

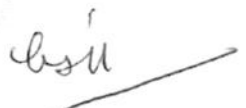
(18th December, 2019)

1. The complainants above named have filed these applications for non-execution of orders passed by the MahaRERA on different dates in the aforesaid complaints filed with respect to different projects registered by the respondent with MahaRERA. By the said orders, the respondent agreed to pay interest for delayed period possession from 1st May, 2017 till the actual date of possession under the provisions of section-18 of the Real Estate (Regulation & Development) Act, 2016 (hereinafter referred to as "RERA").
2. These complaints were heard finally today. During the hearing, the complainants have brought to the notice of MahaRERA that till date the respondent has not complied with the orders passed by the MahaRERA and not yet paid full interest amount to them on monthly basis, as per the orders.
3. The respondent appeared through its advocate and informed MahaRERA that it has made part payment towards the interest amount to the complainants from the date of orders passed by the MahaRERA as per the consent terms signed by both the parties, which are submitted on record of the MahaRERA. The respondent further stated that the projects under reference are nearing completion and payment of interest to all the complainants/allottees at this stage would jeopardise the projects. The respondent, therefore, informed that it will pay the interest to all the complainants; but, sought liberty to pay the same at the time of possession with occupancy certificate to the complainants by adjusting the said interest amount towards the outstanding dues, if any, payable by the complainants.



4. The MahaRERA has examined the arguments advanced by both the parties as well as the record. In these cases, prima facie, it appears that in most of the complainants both the parties have settled the matter amicably and filed consent terms on record and there is no order passed by the MahaRERA on merits. However, since the respondent has agreed to pay the interest amount for the delayed possession from 1st May, 2017 to all the complainants, it will fulfil its commitments. Further, the MahaRERA has also observed that the interest amount is to be paid on monthly basis as per Rule-18 of the Maharashtra Real Estate (Regulation and Development) (Registration of real estate projects, Registration of real estate agents, rates of interests and disclosures on website)) Rules, 2017.
5. In the light of these facts, the MahaRERA directs the respondent to comply with the said commitment and pay the outstanding interest amount to all the complainants by 31st January, 2020, failing which it shall be liable to pay an amount of Rs. 10,000/-per day penalty under the provision of section-63 of the RERA till the actual compliance of this order.
6. With these directions, all the eight execution applications stand disposed of.

महा-रेरा


(Dr. Vijay Satbir Singh)
Member – 1/MahaRERA